

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                                                                            |                                                                                                  |                           |                                                       |                                    |                                 |
|--------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Nick Kuczek                                                                                                               | Team:<br>Squad #08                                                                               | CCRB Case #:<br>202311282 | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                                                                                                            |                                                                                                  |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 10/27/2023 2:09 PM, Friday,<br>10/27/2023 3:00 PM, Saturday, 10/28/2023<br>1:51 AM, Monday, 10/30/2023 1:21 PM | Location of Incident:<br>Outside of § 87(2)(b) in the<br>Bronx ; Over the phone via text message | 18 Mo. SOL<br>4/27/2025   | Precinct:<br>43                                       |                                    |                                 |
| Date/Time CV Reported<br>Fri, 12/01/2023 3:49 PM                                                                                           | CV Reported At:<br>CCRB                                                                          | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 12/01/2023 3:49 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. SGT Calvin Black    | 03911  | 948676 | 043 PCT |
| 2. PO Brandon Bacalles | 21350  | 973235 | 043 PCT |
| 3. PO Jesse Mancuso    | 17486  | 955122 | 043 PCT |

| Witness Officer(s)      | Shield No | Tax No | Cmd Name |
|-------------------------|-----------|--------|----------|
| 1. PO Timothy Bourke    | 21404     | 969537 | 043 PCT  |
| 2. PO James Piekarski   | 24773     | 962691 | 043 PCT  |
| 3. PO Eric Mazurkiewicz | 15746     | 951978 | 043 PCT  |
| 4. SGT Jenze Perez      | 04257     | 953237 | 043 PCT  |
| 5. PO Christian Mas     | 00967     | 956893 | 043 PCT  |
| 6. PO Elijah Rodrigo    | 11451     | 972213 | 043 PCT  |

| Officer(s)              | Allegation                                                                                                                                 | Investigator Recommendation |
|-------------------------|--------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . PO Brandon Bacalles | Abuse: On October 27, 2023, Police Officer Brandon Bacalles entered § 87(2)(b) in the Bronx.                                               | A . Within NYPD Guidelines  |
| B . PO Jesse Mancuso    | Abuse: On October 27, 2023, Police Officer Jesse Mancuso entered § 87(2)(b) in the Bronx.                                                  | B . Within NYPD Guidelines  |
| C . PO Brandon Bacalles | Abuse: On October 27, 2023, Police Officer Brandon Bacalles frisked § 87(2)(b)                                                             | C . Substantiated           |
| D . PO Brandon Bacalles | Abuse: On October 27, 2023, Police Officer Brandon Bacalles failed to provide § 87(2)(b) with a business card.                             | D . Substantiated           |
| E . PO Jesse Mancuso    | Abuse: On October 27, 2023, Police Officer Jesse Mancuso failed to provide § 87(2)(b) with a business card.                                | E . Substantiated           |
| F . SGT Calvin Black    | Abuse: On October 27, 2023, Sergeant Calvin Black improperly obtained § 87(2)(b) identifying information from an official police document. | F . Substantiated           |
| G . SGT Calvin Black    | Abuse: On October 27, 2023, Sergeant Calvin Black engaged in a relationship beyond the scope of official duties with § 87(2)(b)            | G . Substantiated           |
| H . SGT Calvin Black    | Abuse: On October 27, 2023, Sergeant Calvin Black propositioned § 87(2)(b)                                                                 | H . Substantiated           |

| Officer(s)           | Allegation                                                                                       | Investigator Recommendation |
|----------------------|--------------------------------------------------------------------------------------------------|-----------------------------|
| I . SGT Calvin Black | Abuse: On October 27, 2023, Sergeant Calvin Black made sexually suggestive remarks to § 87(2)(b) | I . Substantiated           |
| J . SGT Calvin Black | Abuse: On October 28, 2023, Sergeant Calvin Black propositioned § 87(2)(b)                       | J . Substantiated           |
| K . SGT Calvin Black | Abuse: On October 28, 2023, Sergeant Calvin Black made sexually suggestive remarks to § 87(2)(b) | K . Substantiated           |

## Case Summary

§ 87(2)(b) filed this complaint with the CCRB via telephone on December 01, 2023.

On October 27, 2023, at approximately 2:09 PM, officers responded to § 87(2)(b) 911 call at § 87(2)(b) in the Bronx after she stated that her ex-partner, § 87(2)(b), broke into her apartment. Police Officer Brandon Bacalles and Police Officer Jesse Mancuso of the 43<sup>rd</sup> Precinct entered § 87(2)(b) apartment and PO Bacalles frisked § 87(2)(b) **(Allegations A and B – Abuse of Authority: Within NYPD Guidelines) (Allegations C – Abuse of Authority: Substantiated)**. Neither PO Bacalles nor PO Mancuso offered or provided § 87(2)(b) with a business card during this incident **(Allegations D and E – Abuse of Authority: Substantiated)**. Sergeant Calvin Black of the 43<sup>rd</sup> Precinct spoke to § 87(2)(b) outside of her apartment building, instructed officers on scene to prepare a domestic incident report, and left the scene.

At approximately 3:00 PM on October 27, 2023, Sgt. Black contacted § 87(2)(b) via text message from his personal cellphone and exchanged numerous text messages over the course of the following three days **(Allegations F and G – Abuse of Authority: Substantiated)**. During the exchange, Sgt. Black made numerous sexually suggestive remarks and propositioned § 87(2)(b) **(Allegations H, I, J, and K – Abuse of Authority: Substantiated)**.

Neither § 87(2)(b) nor § 87(2)(b) were arrested or summonsed as a result of this incident.

The investigation obtained Body-worn camera footage (BWC) from Sgt. Black, PO Bacalles, and PO Mancuso, and from Police Officer James Piekarski, Police Officer Timothy Bourke, Police Officer Christian Mas, and Police Officer Elijah Rodrigo, all of the 43<sup>rd</sup> Precinct (Board Review 01).

## Findings and Recommendations

**Allegation (A) Abuse of Authority: On October 27, 2023, Police Officer Brandon Bacalles entered § 87(2)(b) in the Bronx.**

**Allegation (B) Abuse of Authority: On October 27, 2023, Police Officer Jesse Mancuso entered § 87(2)(b) in the Bronx.**

**Allegation (C) Abuse of Authority: On October 27, 2023, Police Officer Brandon Bacalles frisked § 87(2)(b)**

**Allegation (D) Abuse of Authority: On October 27, 2023, Police Officer Brandon Bacalles failed to provide § 87(2)(b) with a business card.**

**Allegation (E) Abuse of Authority: On October 27, 2023, Police Officer Jesse Mancuso failed to provide § 87(2)(b) with a business card.**

§ 87(2)(b) filed this complaint regarding police actions covered in Allegations F, G, H, I, J, and K. BWC footage revealed further police actions that were not alleged, covered in Allegations A, B, C, D, and E.

The investigation exhausted attempts to obtain a statement from § 87(2)(b) but was unable to get in contact with him.

§ 87(2)(b) provided a statement to the CCRB via telephone on December 20, 2023. On October 27, 2023, at approximately 2:00 PM, § 87(2)(b) was inside her apartment located at § 87(2)(b) in the Bronx, when her ex-boyfriend, § 87(2)(b) who did not live with her, entered

the

apartment. § 87(2)(b) told § 87(2)(b) to leave and § 87(2)(b) told her, “No. We’re going to work this out. I’m not leaving. Call the cops if you want me to leave.”

At approximately 2:09 PM, § 87(2)(b) exited her apartment, called 911, and told the operator that her ex-boyfriend broke into her apartment. § 87(2)(b) then walked down the street to pick up her son from the school bus stop, as he had just been dropped off, and § 87(2)(b) and her son walked back to § 87(2)(b) to wait for police to arrive on scene (Board Review 02).

The investigation obtained the audio of the 911 call made by § 87(2)(b) during this incident. The audio begins with § 87(2)(b) stating that § 87(2)(b) is obsessed with her and that he has been continuously breaking into her apartment. At 00:15, § 87(2)(b) states that § 87(2)(b) “threw her through a door” and states that § 87(2)(b) has previously “broke her ear.” At 01:45, § 87(2)(b) states that she cannot continue dealing with § 87(2)(b) and states that she is scared that she is going to get killed one day. At 01:50, § 87(2)(b) physically describes § 87(2)(b) as a 5-foot-7-inch white male with blue eyes and brown hair, and states that his name is § 87(2)(b). At 02:30, § 87(2)(b) states that § 87(2)(b) is wearing black Adidas pants, black sneakers, a red and yellow shirt, and a black coat. At 02:50, § 87(2)(b) states that § 87(2)(b) is still inside the apartment (Board Review 03).

The investigation obtained the audio of the ensuing radio communications that followed the 911 call made by § 87(2)(b) and the audio begins with the dispatcher providing § 87(2)(b) address, stating that there is a “31” at the location. At 00:40, the dispatcher states that a 5-foot-7-inch white male individual named § 87(2)(b) wearing black Adidas, a red and yellow shirt, and a black coat may have broken into the apartment and states that he threw § 87(2)(b) into a door (Board Review 03).

PO Mancuso’s BWC captured the entirety of his and PO Bacalles’ interactions with § 87(2)(b) and § 87(2)(b) during this incident. The footage begins with PO Mancuso and PO Bacalles arriving on scene and at 01:45, PO Bacalles approaches the apartment building door at § 87(2)(b) and knocks on the door. A woman opens the door and she tells PO Bacalles that she did not call and that it was her neighbor upstairs in § 87(2)(b). PO Mancuso and PO Bacalles ask the woman if she heard any commotion or anyone breaking in and she states that she did not, as she has been on her phone. At 02:00, the woman tells PO Mancuso that the woman who lives in § 87(2)(b) was walking outside, and she states that she does not know if she came back inside. At 02:09, the woman states that it might be § 87(2)(b) boyfriend upstairs, and states that § 87(2)(b) and her boyfriend were arguing. At 02:20, the neighbor states that § 87(2)(b) boyfriend is a white man with long hair. At 02:40, PO Mancuso walks upstairs where PO Bacalles is knocking on § 87(2)(b) apartment door and stating, “Police.” At 02:50, PO Bacalles opens § 87(2)(b) apartment door and walks inside, and PO Mancuso walks inside the apartment behind him. § 87(2)(b) stands in the hallway just inside the apartment, and PO Mancuso and PO Bacalles both tell him to place his hands up. PO Mancuso asks § 87(2)(b) if he lives inside the apartment and § 87(2)(b) states that he does. At 03:00, § 87(2)(b) states that nobody else is inside the apartment and states that he lives in the apartment with his girlfriend, his girlfriend’s son, and his girlfriend’s mother. At 03:10, PO Bacalles frisks both sides of § 87(2)(b) jacket. At 03:15, PO Mancuso asks § 87(2)(b) how he got into the apartment and § 87(2)(b) states that he has been inside the apartment, that he lives inside the apartment, but that he does not have keys. § 87(2)(b) attempts to take his wallet from his jacket pocket to provide PO Mancuso with his identification, and PO Mancuso reaches into § 87(2)(b) pocket, removes the wallet, and § 87(2)(b) tells PO Mancuso that his

identification is located on the inside flap of the wallet. PO Mancuso looks at the identification and § 87(2)(b) tells him that he has lived in the apartment for the past eight months. At 03:45, § 87(2)(b) states that his girlfriend's name is § 87(2)(b) and states that she is picking up her son from the bus stop. At 04:10, PO Mancuso asks § 87(2)(b) if he broke into the apartment, to which he states that he did not, and PO Bacalles states that they received a call stating that someone matching his description broke into the apartment. At 04:35, § 87(2)(b) states that his picture is on the refrigerator, and he points into the kitchen. At 05:45, PO Mancuso asks § 87(2)(b) if he had an argument with § 87(2)(b) and he states that there was an argument between him and § 87(2)(b) that day. At 06:25, PO Bacalles asks § 87(2)(b) what his and § 87(2)(b) argument was about and § 87(2)(b) states that they got into an argument regarding § 87(2)(b) recording § 87(2)(b) on her cellphone. At 06:50, PO Mancuso asks § 87(2)(b) if his and § 87(2)(b) verbal dispute became physical and § 87(2)(b) states that it did not. At 08:20, § 87(2)(b) walks outside with PO Mancuso and PO Bacalles (Board Review 04).

PO Bacalles' BWC was consistent with that of PO Mancuso's (Board Review 05).

PO Bacalles testified at the CCRB on March 13, 2024. He stated that on October 27, 2024, at approximately 2:09 PM, he and PO Mancuso received a radio run for a residential burglary at § 87(2)(b) in the Bronx. The dispatcher stated that someone was breaking into the apartment and provided a physical description of the perpetrator as being a white male, and detailed description of the white male's clothing was given. PO Bacalles did not independently recall the clothing description. PO Bacalles did not recall any further details being provided. PO Bacalles did not know whether the caller or the perpetrator were still inside the apartment.

Upon arrival on scene, PO Bacalles and PO Mancuso knocked on the front door of the apartment building and a woman who lived on the § 87(2)(b) floor opened the door. The woman told PO Bacalles and PO Mancuso that she did not hear anyone break into the § 87(2)(b) floor apartment, and she stated that a woman and a white male lived upstairs in § 87(2)(b).

PO Bacalles and PO Mancuso walked upstairs, and PO Bacalles knocked on the front door of § 87(2)(b) apartment. PO Bacalles did not hear anything after approximately 30 seconds, opened the unlocked apartment door and walked inside, with PO Mancuso walking in behind him. Neither PO Bacalles nor PO Mancuso asked for or obtained consent from anyone to enter the apartment. PO Bacalles did not believe he needed consent to enter § 87(2)(b) apartment and did so under the emergency exception, stating the emergency as being the burglary in progress, and PO Bacalles wanted to make sure that the 911 caller, if inside the apartment, was okay. The woman who lived on the § 87(2)(b) floor telling PO Bacalles that a white male lived inside § 87(2)(b) which PO Bacalles described as potentially matching the physical description of the perpetrator provided by the dispatcher, did not factor into his decision to enter the apartment.

PO Bacalles and PO Mancuso approached § 87(2)(b) who stood in the hallway immediately upon entry. His left hand was in his left jacket pocket and he matched the physical description of the suspect as described by the dispatcher. PO Bacalles patted down the exterior of § 87(2)(b) left jacket pocket to make sure he did not have a weapon on him, which he did not. PO Bacalles did not have any articulable reason to believe that § 87(2)(b) was armed and frisked his pocket solely for the safety of him and PO Mancuso. § 87(2)(b) had not acted aggressively or taken any action that would have led PO Bacalles to believe that § 87(2)(b) was dangerous.

PO Bacalles asked § 87(2)(b) if anyone else was inside the apartment and § 87(2)(b)

stated that he was the only person inside the apartment. PO Bacalles asked § 87(2)(b) what was going on and § 87(2)(b) stated that he lived inside the apartment with his girlfriend, § 87(2)(b) who was the 911 caller, and stated that the two had a dispute that day. § 87(2)(b) did not provide any further details regarding the dispute with § 87(2)(b) other than stating that they argue all the time. § 87(2)(b) told PO Bacalles that his picture was on the fridge, and PO Bacalles looked and saw that there was a picture of § 87(2)(b) on the fridge. After § 87(2)(b) explained to PO Bacalles that he had been living in the apartment, that he and § 87(2)(b) had an argument, and showed him the picture of him on the fridge, PO Bacalles determined that there was no burglary in progress and that this was, instead, a domestic incident.

Sgt. Black arrived on scene and spoke to § 87(2)(b) outside, and PO Bacalles, PO Mancuso, and § 87(2)(b) exited the apartment building to speak with them. Sgt. Black told PO Bacalles that he had responded to incidents at the location before and stated that this was a domestic dispute, not a burglary. PO Bacalles prepared a Domestic Incident Report for the incident, provided a copy to § 87(2)(b) and § 87(2)(b) and left the scene. PO Bacalles did not offer or provide § 87(2)(b) with a business card during this incident as he did not believe that this was an incident that required him to offer or provide a business card because § 87(2)(b) did not ask for one. PO Bacalles believed that the Domestic Incident Report copy given to § 87(2)(b) had his name, shield number, and tax identification number on it (Board Review 06).

PO Mancuso testified at the CCRB on March 13, 2024, and his testimony was consistent with that of PO Bacalles'. PO Mancuso did not offer or provide § 87(2)(b) with a business card during this incident. PO Mancuso did not believe this was a situation that required him to offer or provide § 87(2)(b) with a business card because § 87(2)(b) did not request one from him (Board Review 07).

People v. Doll, 21 N.Y.3d 665 (2013), states that the emergency doctrine allows the police to conduct a warrantless residential entry without knowing if a crime had taken place inside. The exception to the warrant requirement is comprised of three elements: (1) police must have reasonable grounds to believe there is an emergency at hand and an immediate need for their assistance to protect life or property; (2) the “search” must not be motivated by intent to arrest and seize evidence; (3) there must be a reasonable basis to associate the emergency with the area to be “searched” (Board Review 08).

According to Payton v. New York, 445 U.S. 573 (1980), absent exigent circumstances or consent, officers may not enter a home to seize evidence or to make a warrantless arrest (Board Review 09).

According to People v. De Bour, 40 N.Y.2d 210 (1976), a police officer has the authority to frisk if the officer reasonably suspects that he is in danger of physical injury by virtue of a detainee being armed (Board Review 10).

According to NYPD Patrol Guide Procedure 212-11, a frisk is authorized when an officer reasonably suspects that a person is armed and dangerous. Following a frisk, a search is authorized only when the frisk reveals an object that the officer reasonably suspects to be a weapon, in order to remove the weapon (Board Review 11).

According to New York City Administrative Code 14-174, officers must offer or provide a business card to any individual with which they conduct a law enforcement activity, including stops and frisks, at the conclusion of any such activity that does not result in an arrest or summons (Board Review 12).





**Allegation (K) Abuse of Authority: On October 28, 2023, Sergeant Calvin Black made sexually suggestive remarks to § 87(2)(b)**

§ 87(2)(b) stated that after she returned to § 87(2)(b) from the bus stop with her son, she was approached by approximately four police officers. § 87(2)(b) told officers that § 87(2)(b) did not live with her and that she wanted him out of her apartment. § 87(2)(b) then filled out a Domestic Incident Report, which included her cellphone number, and officers left the scene.

At approximately 3:00 PM on October 27, 2023, § 87(2)(b) received a text message on her personal cellphone from the number § 87(2)(b) stating that it was one of the police officers from earlier that day. The investigation confirmed the § 87(2)(b) phone number belongs to Sergeant Calvin Black of the 43<sup>rd</sup> Precinct, the precinct in which § 87(2)(b) apartment is geographically located. Sgt. Black, who did not ever identify himself by name or rank to § 87(2)(b), § 87(2)(b) texted her that he was sorry about what happened to her, and wished her a happy birthday, as § 87(2)(b) had told officers on scene that it was her birthday. § 87(2)(b) thanked Sgt. Black, and he texted her that she looked good, which § 87(2)(b) found awkward and ignored. Sgt. Black then texted, “Have you ever seen a big German cock? Because I have one.” § 87(2)(b) texted Sgt. Black that she did not want to talk about that, texted him to stop, and texted him that she was uncomfortable. Sgt. Black texted § 87(2)(b) that he understood and that they would stop.

At the time of her CCRB interview, § 87(2)(b) had since deleted her entire text-based conversation with Sgt. Black but took several screenshots of the text messages before doing so (Board Review 02).

§ 87(2)(b) provided the investigation with screenshots of a portion of her text-based conversation with Sgt. Black. The screenshots begin on October 27, 2023, at 8:07 PM, and do not include the alleged initial conversation between § 87(2)(b) and Sgt. Black occurring at approximately 3:00 PM mentioned above, as she did not screenshot that portion of text messages prior to deleting them.

The conversation begins with § 87(2)(b) and Sgt. Black discussing their favorite actors and on page two, Sgt. Black asks § 87(2)(b) “Biggest turn on?” § 87(2)(b) responds with an 18-second audio message, which the investigation was unable to obtain, and Sgt. Black responds, stating, “Lol and a big dick you said lmao,” “I like a sense of humor,” “Chill,” “And a big booty helps lol.”

On pages three to five, § 87(2)(b) sends several consecutive text messages discussing her mother and the earlier incident with § 87(2)(b) at § 87(2)(b) and Sgt. Black responds, stating, “Hot.”

On pages seven and eight, Sgt. Black tells § 87(2)(b) “Happy bday birthday girls lol,” “Eat your booty like cake.” § 87(2)(b) responds, sending several consecutive text messages stating that she wants to block Sgt. Black, asking him to refrain from sexual-related conversation, and sending a 17-second audio message, which the investigation was unable to obtain.

On page eight, on October 28, 2023, at 5:39 PM, Sgt. Black tells § 87(2)(b) “Hey hot buns,” to which § 87(2)(b) does not respond, and Sgt. Black states, “dam no love.”



On page nine, Sgt. Black tells § 87(2)(b) “What’s up ghost,” and “Take it off lmao.” Sgt. Black then states, “Strip search lol,” to which § 87(2)(b) responds, stating, “< < im naked and afraid lmfao.” Sgt. Black responds, stating, “lol nah you be naked and happy.” § 87(2)(b) tells Sgt.

Black, “I’ve had big dick disappoint me,” to which he responds, stating, “lmao probably because u need amazing oral game on you first.”

On pages 12 to 16, on October 29, 2023, at 1:08 AM, § 87(2)(b) sends several consecutive texts stating her displeasure with sexual related topics of conversation with Sgt. Black. On October 30, 2023, at 1:21 PM, Sgt. Black tells § 87(2)(b) “Long time no see :,” (Board Review 14).

§ 87(2)(b) testimony of her text-based conversation with Sgt. Black was consistent with the above screenshotted text messages. § 87(2)(b) blocked Sgt. Black’s phone number following his text message on October 30, 2023, did not have any further communication with him, and the communication was solely text-based. § 87(2)(b) received a friend suggestion on Snapchat for the username, § 87(2)(b) which was associated with the phone number, § 87(2)(b) had the name, “Calvin Black,” and the § 87(2)(b) for the user, a personal avatar associated with a Snapchat account, was dressed in a police officer uniform. For this reason, § 87(2)(b) believed that the name of the officer who was texting her was Calvin Black, however as mentioned above, Sgt. Black did not ever identify himself to § 87(2)(b) by name or rank. § 87(2)(b) did not give any officer her cellphone number and believed that the only way the officer could have obtained her cellphone number was from the Domestic Incident Report that she filled out on scene on October 27, 2023 (Board Review 02).

Sgt. Black testified at the CCRB on March 05, 2024. On October 27, 2023, at approximately 2:09 PM, Sgt. Black responded to a burglary in progress at § 87(2)(b) in the Bronx, in which § 87(2)(b) called 911, stating that her ex-partner, § 87(2)(b) broke into her apartment.

Sgt. Black had responded to calls at § 87(2)(b) prior to this incident in which § 87(2)(b) had called 911. Sgt. Black could not estimate how many times he had responded or how recently his last response to the location was prior to this incident but stated that the previous jobs were similar in nature, being domestic incidents involving § 87(2)(b) and § 87(2)(b). Sgt. Black was aware of an AIDED job at the location in which § 87(2)(b) was deemed an emotionally disturbed person, but did not recall if he was present for that job and did not know any of the details regarding the incident.

Upon arrival on scene, Sgt. Black spoke to § 87(2)(b) outside her apartment building. § 87(2)(b) told Sgt. Black that it was her birthday, that she had had a physical altercation with § 87(2)(b) but that she was not injured, and that she wanted § 87(2)(b) out of her apartment. Based on the information provided by § 87(2)(b) Sgt. Black believed that a burglary had not occurred and that this was instead a domestic dispute between § 87(2)(b) and § 87(2)(b). A domestic incident report was prepared as a result of this incident, but Sgt. Black did not know which officer prepared it and was not on scene when it was prepared. Sgt. Black did not recall if at any point he saw or reviewed the domestic incident report that was prepared in regards to this incident. Sgt. Black could not estimate how long he was on scene before he left.

At some point on October 27, 2023, after leaving the scene, Sgt. Black texted § 87(2)(b) on his personal cellphone to follow-up with her and make sure that she was okay. Sgt. Black generally likes to follow up with individuals to ensure that they are safe and that police services were properly provided. When asked if Sgt. Black does this on a routine basis, he stated that he does it on a case-by-case basis. Sgt. Black’s text-based follow-up contact with § 87(2)(b) was done in an

official police duty-based capacity. Sgt. Black did not recall why he contacted § 87(2)(b) on his personal cellphone as opposed to his department-issued cellphone. Sgt. Black did not recall if § 87(2)(b) provided him with her phone number on scene and did not recall how he obtained § 87(2)(b) phone number, but generally, he would obtain the phone number of a person who called 911 by looking up the job callback number on his department-issued cellphone. Sgt. Black did not independently recall any of his text-based conversation with § 87(2)(b) did not recall telling § 87(2)(b) that she “looked good” and did not recall stating, “Have you ever seen a big German cock before? Because I have one,” to § 87(2)(b).

Sgt. Black was presented with screenshots of a portion of his and § 87(2)(b) text-based conversation, beginning on October 27, 2023, at 8:07 PM. Sgt. Black reiterated that after being presented with the screenshots, he still did not recall any of his initial text-based conversation with § 87(2)(b) from when he first reached out to her on October 27, 2023. On page two of the screenshots, Sgt. Black asked § 87(2)(b) “Biggest turn on?” Sgt. Black believed that he asked this to get context into what § 87(2)(b) likes in a person. Sgt. Black did not recall what the purpose of him inquiring about § 87(2)(b) preferences in a person was but stated that follow-up texts with individuals done in an official, police duty-based capacity did not include asking people about their personal preferences in a person. Without seeing the initial text conversation between him and § 87(2)(b) of which the investigation did not have screenshots, Sgt. Black could not detail further why he asked § 87(2)(b) this but stated that at this point in his conversation with § 87(2)(b) it was no longer being done in a professional capacity and was being done in a personal capacity.

On page two of the screenshots, § 87(2)(b) sent an 18-second audio message to Sgt. Black and Sgt. Black responded, stating, “Lol and a big dick you said lmao,” “I like a sense of humor,” “chill,” and “And a big booty helps lol.” Sgt. Black did not recall what § 87(2)(b) stated in the audio message and did not recall why he was talking to § 87(2)(b) about “big dick” and “big booty”.

On page seven of the screenshots, Sgt. Black texted § 87(2)(b) “Happy bday birthday girls lol,” “Eat your booty like cake.” Sgt. Black stated this because while on scene, § 87(2)(b) told him that it was her birthday. Sgt. Black did not know why he stated, “Eat your booty like cake,” and could not state what his intentions were in making the statement.

On page seven and page eight of the screenshots, § 87(2)(b) sent several consecutive text messages stating that she wants to block Sgt. Black and asked him to refrain from sexual-related conversation. Sgt. Black stated that § 87(2)(b) did make sexual comments during their conversation. Sgt. Black interpreted these messages as being “playful,” but that § 87(2)(b) also wanted to talk about other things, such as her life.

On page eight of the screenshots, Sgt. Black texted § 87(2)(b) “Hey hot buns” and “dam no love.” These texts were sent on October 28, 2023, at 5:39 PM, and Sgt. Black was on-duty at the time that these text messages were sent. Sgt. Black’s statements were meant in a flirtatious manner. Sgt. Black and § 87(2)(b) conversation had become personal, and both of them exchanged what Sgt. Black would describe as flirtatious text messaging. Sgt. Black did not believe that he wanted a sexual relationship with § 87(2)(b) at the time that these texts were sent, but could not recall if his intentions were to develop a romantic relationship with § 87(2)(b) or if he wanted to date § 87(2)(b). He could not detail any further what his intentions with her were.

On page 11 of the screenshots, § 87(2)(b) stated, “I’ve had big dick disappoint me,” and Sgt. Black responded, stating, “lmao probably because u need amazing oral game on you first.” Sgt.

Black believed that he made this statement in a flirtatious manner.

Sgt. Black did not believe that he had any further communication with § 87(2)(b) after texting her, “Long time no see :(“ on October 30, 2023, at 1:21 PM, and Sgt. Black did not believe he had any form of contact with § 87(2)(b) other than text-based.

Sgt. Black did not believe that § 87(2)(b) constituted a confidential informant, witness, or victim in a pending case or investigation, therefore he did not believe there was any restriction on his contact with her. Sgt. Black’s interpretation of a “victim” was being a victim of a crime, and because § 87(2)(b) was not a victim of a crime, (as Sgt. Black determined that a burglary had not in fact occurred on scene), she did not constitute a victim. Sgt. Black also stated that § 87(2)(b) did not witness a crime and considered her as a 911 caller (Board Review 15).

Sgt. Black’s BWC captured the entirety of his interactions with § 87(2)(b) at § 87(2)(b) on October 27, 2023. At 01:00, Sgt. Black approaches § 87(2)(b) outside of her apartment building and § 87(2)(b) details prior disputes between her and § 87(2)(b). § 87(2)(b) confirms to Sgt. Black that § 87(2)(b) is her ex-partner and at 01:45, she states that § 87(2)(b) threw her through a door that morning. At 03:45, Sgt. Black tells PO Mas that he has responded to the address before, that § 87(2)(b) has been “EDP’d” before and that § 87(2)(b) has been arrested before, but that he used to live at the address and is not trespassing. At 05:40, Sgt. Black tells PO Mancuso that § 87(2)(b) and § 87(2)(b) disputes are “on and off” and that § 87(2)(b) has lived at the address for more than a month. At 06:00, Sgt. Black tells PO Mancuso that a domestic incident report should be filled out regarding the incident (Board Review 16).

The investigation obtained Domestic Incident Report # § 87(2)(b) prepared by PO Bacalles on October 27, 2023, which included § 87(2)(b) personal cellphone number (Board Review 17).

NYPD Administrative Guide 304-06 prohibits officers from engaging in conduct prejudicial to good order, efficiency, or discipline of the Department.

NYPD Administrative Guide 304-06 prohibits officers from engaging in a relationship beyond the scope of official duties with confidential informants, witnesses, or victims while on or off duty. Conduct beyond the scope of official duties includes but is not limited to any of the following activities: dating, romantic/sexual relationship, and socializing.

NYPD Administrative Guide 304-06 prohibits officers from manipulating, transmitting, or distributing any official Department recorded media, including files and forms, except for official department business (Board Review 18).

The investigation was unable to obtain a full, complete, record of the initial text messages between Sgt. Black and § 87(2)(b) in which Sgt. Black first reached out to § 87(2)(b) and allegedly told her that she “looked good,” and stated, “Have you ever seen a big German cock before? Because I have one,” to her. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation G** be closed as **Substantiated**.

§ 87(2)(g)

it is recommended that **Allegations H, I, J, and K** be closed as **Substantiated**.

§ 87(2)(g)

by BWC as at no point in the footage did § 87(2)(b) provide Sgt. Black or any other officer with her phone number on scene. § 87(2)(g)

it is recommended that **Allegation F** be closed as **Substantiated**.

#### **Civilian and Officer CCRB Histories**

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 19).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 20).
- Sgt. Black has been a member of service since July 6, 2010, and has been a subject in nineteen CCRB complaints and forty-two allegations, of which seven were substantiated.:
  - 201200442 involved a substantiated allegation of Abuse of Authority – Refusal to provide name/shield number against Sgt. Black. The NYPD imposed Command Discipline B.

- 201601193 involved a substantiated allegation of Abuse of Authority – Stop against Sgt. Black. The NYPD imposed Formalized Training.
- 202203675 involved a substantiated allegation of Abuse of Authority – Entry of Premises and Abuse of Authority – Forcible Removal to Hospital against Sgt. Black. The Board recommended Command Discipline A and the NYPD imposed such.
- § 87(2)(g) [REDACTED]
- 202207331 involved a substantiated allegation of Abuse of Authority – Question and Abuse of Authority – Search of a person against Sgt. Black. The Board recommended Command Discipline B and the NYPD has yet to impose penalty. § 87(2)(g) [REDACTED]
- PO Bacalles has been a member of service since December 29, 2021, and has been a subject in two CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Mancuso has been a member of service since July 9, 2013, and this is the first CCRB complaint to which he has been a subject (Board Review 23).

#### **Mediation, Civil, and Criminal Histories**

- This complaint was not suitable for mediation.
- As of March 12, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 24).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
- [REDACTED]

#### **RPBP History**

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 8

|               |                        |                             |                   |
|---------------|------------------------|-----------------------------|-------------------|
| Investigator: | <u>Nicholas Kuczek</u> | <u>Inv. Nicholas Kuczek</u> | <u>04/05/2024</u> |
|               | Signature              | Print Title & Name          | Date              |

|               |                        |                           |                   |
|---------------|------------------------|---------------------------|-------------------|
| Squad Leader: | <u>Ethan De Angelo</u> | <u>IM Ethan De Angelo</u> | <u>04/05/2024</u> |
|               | Signature              | Print Title & Name        | Date              |

Reviewer:

---

Signature

---

Print Title & Name

---

Date